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DECLARATION OF CONDOMINIUM

BARWOOD CONDOMINIUM IV
a Condominium

BOCA RATON, FLORIDA

DEVELOPER

Barwood Development Corporation
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FINANCING

Boca Raton Federal Savings &
Loan Association
Boca Raton, Florida

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SUMMARY OF THE CONDOMINIUM DOCUMENTS

DECLARATION OF CONDOMINIUM

Pursuant to the provisions of this instrument BARWOOD DEVELOPMENT CORPORATION will submit BARWOOD CONDOMINIUM IV , A CONDOMINIUM, to the condominium form of ownership under Florida Statute 718, the Condominium Act. The Declaration with its exhibits will be recorded among the Public Records of Palm Beach County, Florida, when the condominium building Barwood Condominium IV , a Condominium, is substantially completed. The Declaration together with the exhibits describe each unit and its dimensions, show the location of parking spaces and common areas, generally describes the obligation of maintenance and repair, sets forth the percentage of the common elements and common expense accruing to each unit owner. Further, the Declaration also contains provisions relating to maintenance of the condominium community interest, with regard to sale and rental of a unit and the first right of refusal of the Condominium Association. The Declaration is, in essence, the Constitution of the Condominium.

ARTICLES OF INCORPORATION

BARWOOD CONDOMINIUM IV, A CONDOMINIUM. The condominium is operated by BARWOOD CONDOMINIUM IV , ASSOCIATION, INC., a Florida Corporation not-for-profit. This corporation was created by filing with the Secretary of State of the State of Florida a document entitled the Articles of Incorporation. The Articles of Incorporation provide that each unit owner shall become a member of the Association, sets forth the qualifications for membership of the Board of Directors, and specifies the officers of the Association and their respective functions.

BY-LAWS

BARWOOD CONDOMINIUM IV, A CONDOMINIUM. The By-Laws set out specifically the guidelines for the day to day operation of the condominium and the Association. The By-Laws describe the powers and duties of the Board of Directors, how and when Directors' meetings are held, the duties of the officers of the corporation and sets forth the items of the budget.

RULES AND REGULATIONS

BARWOOD CONDOMINIUM IV , A CONDOMINIUM. The Rules and Regulations are promulgated by the Board of Directors of the Condominium Association and apply to all members, their families, their guests, and their invitees. The Rules and Regulations are

established to maintain an orderly, healthy and congenial lifestyle of each member of the Condominium Association.

DECLARATION OF COVENANTS AND RESTRICTIONS
FOR IMPROVEMENTS AND MAINTENANCE

BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION. This document creates restrictions on the land submitted to the condominium form of ownership and creates the right of the Barwood Condominium Improvement Association, Inc., a non-profit corporation, to control the Barwood Condominium recreation facilities. Each unit owner of Barwood Condominium will be a member of the Barwood Condominium Improvement Association and contribute to the operation and expenses of the recreation facilities.

BY-LAWS

BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC. These By-Laws set out the guidelines for the day to day operation of the Barwood Condominium Improvement Association, Inc.

ARTICLES OF INCORPORATION

BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC. The umbrella organization which will operate and maintain the recreation improvements, and provide recreational services to the entire Barwood Condominium project as it is developed, is a non-profit corporation established by the Articles of Incorporation.

PROPOSED BUDGET

The proposed budget is included in this document but is not a part of the Declaration of Condominium. The proposed budget is required by law to be submitted to each purchaser and is delivered to inform the purchaser of the obligation incurred by membership in the respective Condominium Associations (BARWOOD CONDOMINIUM IV ASSOCIATION, INC., and BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC).

DECLARATION OF CONDOMINIUM
FOR
BARWOOD CONDOMINIUM IV, A CONDOMINIUM
Boca Raton, Florida 33432

Made this 24th day of March, 1978, by BARWOOD DEVELOPMENT CORPORATION, as owner of the herein described real property and developer of the improvements thereon, hereafter called the "Developer" for itself, its successors, grantors, assignees, or its transferees.

WHEREAS, said Owner and Developer makes the following declaration:

1. PURPOSE. The purpose of this Declaration is to submit the lands described in this instrument and improvements on such lands, and improvements to be constructed upon such lands, to the condominium form of ownership and use in the manner provided by Chapter 718, Florida Statutes, hereinafter referred to as "Condominium Act."

1.1 The name by which this condominium is to be identified is BARWOOD CONDOMINIUM IV, A CONDOMINIUM.

1.2 The address of this condominium is:
23249 Barwood Lane North
Boca Raton, Florida 33432

1.3 The lands owned by the Developer, which by this instrument are submitted to the condominium form of ownership, are those certain lands lying in Palm Beach County, Florida, as described in Exhibit "B" attached hereto, and made a part hereof, which shall hereinafter be referred to as "the land". Said lands shall be subject to conditions, restrictions, limitations and easements of record and reservations of record.

1.4 Covenants. All provisions of the Declaration shall be construed to be perpetual covenants running with the land and with every part thereof and interest therein, and every unit owner and claimant of the land or any part thereof or interest therein, and his heirs, executors and administrators, successors and assigns, shall be bound by all of the provisions of the Declaration, unless this Declaration shall be terminated pursuant to the Condominium Act and/or as provided herein. Both the burdens imposed and the benefits shall run with each unit as herein defined.

2. Definitions. The terms used in this Declaration, the Articles of Incorporation, the By-Laws, and the Rules and Regulations of BARWOOD CONDOMINIUM IV, ASSOCIATION, INC., a Florida corporation not for profit, shall have the meaning stated in the Condominium Act and as follows unless the context otherwise requires.

Further, whenever the context so requires, the use of any gender shall be deemed to include all genders, the use of the plural shall include the singular and the singular shall include the plural.

2.1 Association means the BARWOOD CONDOMINIUM IV ASSOCIATION, INC., and its successors or assigns.

2.2 Assessments means a share of the funds required for the payment of the condominium expenses which from time to time are assessed against the individual owner.

2.3 By-Laws means the By-Laws for the government of the condominium as they exist from time to time.

2.4 Common element means the portions of the condominium property not included in the units and, in addition thereto, all other items as stated in this Declaration.

2.5 Common expenses means the expenses for which the unit owners are liable, which shall include but not be limited to the following:

- A. Expenses of administration and management of the condominium property.
- B. Expenses of maintenance, operation, repair or replacement of common elements.
- C. Expenses declared common expenses by the provisions of this Declaration or by the By-Laws.
- D. Any valid charge against the condominium as a whole.
- E. Any expense of, charge to, or assessment by the Association as provided for in this Declaration, the Articles of Incorporation and/or the By-Laws.
- F. Expense of maintenance, operation, repair, administration, and management of Barwood Condominium Improvement Association, Inc.

2.6 Common Surplus means the excess of all receipts of the Association, including but not limited to assessments, rents, profits and revenues on account of the common elements, over the amount of common expenses.

2.7 Condominium is that form of ownership of condominium property under which units of improvements are subject to ownership by one or more owners, and there is appurtenant to each unit as part thereof an undivided share of the common elements.

2.8 Condominium parcel means a unit together with the undivided share in the common elements which is appurtenant to the unit.

2.9 Condominium property means and includes the land in this condominium, whether or not contiguous, and all improvements thereon and all easements and rights appurtenant thereto intended for use in connection with the condominium.

2.10 Declaration, or Declaration of Condominium, means the instrument or instruments by which this condominium is created, and said instrument or instruments as they may be from time to time amended.

2.11 Limited common element means and includes those common elements which are reserved for the use of a certain unit or units to the exclusion of other units.

2.12 Member. As used herein, the term "member" means and refers to any person, natural or corporate, who becomes a member of the Association as described in the Articles and By-Laws whether or not that person participates in the Association as a member.

2.13 Operation, or operation of the condominium, means and includes the administration and management of the condominium property.

2.14 Institutional Mortgagee is the owner and holder of a mortgage encumbering a condominium parcel, which owner and holder of said mortgage shall be either a bank, life insurance company, federal or state savings and loan association, real estate or mortgage investment trust, or other mortgagee which shall be acceptable to the association.

2.15 Unit means a part of the condominium property which is subject to private ownership.

2.16 Unit owner means the owner of a unit.

2.17 Utility service, as used in the Condominium Act and as construed with reference to this condominium, and as used in the Declaration and By-Laws, shall include but not be limited to, electric power, gas, hot and cold water, heating, refrigeration, garbage, sewage disposal and solar energy.

3. Development Plans

3.1 Improvements

A. Annexed hereto and made a part hereof as Exhibit A is the survey, site plan and graphic descriptions of all units, including their identification numbers, locations and dimensions, and the Common Elements and Limited Common Elements. Together with this Declaration, said Exhibit is in sufficient detail to identify each of said units and the Common Elements and Limited Common Elements, their relative locations and approximate dimensions. The legend and notes contained therein are incorporated herein and made a part hereof by reference.

B. Where more than one typical unit has been acquired by the same owner and combined into a single dwelling place, the typical unit plans may not reflect the interior plans of the

4.4 Balconies. A unit shall include where applicable, as indicated on Exhibit A, a balcony, the boundaries of which shall be as follows: All upper, lower and perimetrical boundaries shall be the same as set forth above. However, should a perimetrical boundary be screening or railing, then the unit shall include the screening and/or railing and the boundary shall be the exterior surface of the frame of the screening and/or exterior surface of the railing, except those between units which shall be treated the same as perimeter walls, as provided for in 4.2 above.

5. Ownership

5.1 Type of ownership. Ownership of each condominium parcel may be in fee simple, or in any other estate in real property recognized by the law and at least subject to this Declaration and restrictions, reservations, limitations of record.

5.2 Association Membership. The owners of record of the units shall be members of the Association. There shall be one membership for each unit and there is more than one record owner per unit, then such membership shall be divided among such owners in the same manner and proportion as is their ownership in the unit.

5.3 Unit Owners' Rights. The owner of a unit is entitled to the exclusive possession of his unit. He shall be entitled to use the common elements in accordance with the purposes for which they are intended, but no such use shall hinder or encroach upon the lawful rights of owners of other units. There shall be a joint use of the common elements and a joint mutual easement for that purpose is hereby created.

6. Restraint Upon Separation and Partition of Common Elements.

The fee title of each condominium parcel shall include both the condominium unit and an undivided interest in the common elements, said undivided interest in the common elements to be deemed to be conveyed or encumbered with its respective condominium unit, even though the description in the instrument of conveyances may refer only to the fee title to the condominium unit. Any attempt to separate and/or action to partition the fee title to a condominium unit from the undivided interest in the common elements appurtenant to each unit shall be null and void.

7. Percentage of Ownership of Common Elements. Each of the unit owners of the condominium shall own an undivided interest in the common elements, equal to the following fraction: $\frac{1}{36}$ - one (1) thirty-sixth (36).

8. Common Expense and Common Surplus.

8.1 The common expenses to be borne by each unit owner shall be a proportionate share of the total expenses and costs

combined units, but the exterior boundaries of the combined units remain the same. Should any unit be combined, combined units shall exist as separate units as described in the Declaration for the purposes of the Declaration, Articles of Incorporation of the Association and the By-Laws.

3.2 Plat Plan. A plot plan and survey of the lands comprising the Condominium locating the improvements constructed thereon, is attached hereto as Exhibit A.

3.3 Unit Plans. As to the building constructed pursuant to the development plan of the condominium, attached hereto is Exhibit A, page 1, a survey and plot plan; and, Exhibit A, pages 2 through 4, which contains elevations and floor plan. The legal description of each unit shall consist of the identifying number of such unit as shown on the Exhibit A attached hereto. Every deed, lease, mortgage or other instrument may legally describe a unit and/or condominium parcel by its identifying number as provided for on the attached Exhibit A and each and every description shall be deemed good and sufficient for all purposes.

3.4 Phase Development. Barwood Condominium is being constructed as a phase development. The commitment and development plan for phase construction is attached hereto and made a part hereof and identified as paragraph 14 to the Prospectus.

4. Unit Boundaries. Each unit shall include that part of the building containing the unit that lies within the boundaries of the unit, which boundaries are as follows:

4.1 Upper and Lower Boundaries. The upper and lower boundaries of the unit shall be the following boundaries extended to an intersection with the perimetrical boundaries:

- A. Upper Boundary: The horizontal plane of the undecorated finished ceiling.
- B. Lower Boundary: The horizontal plane of the undecorated finished floor.

4.2 Perimetrical Boundaries. The perimetrical boundaries of the unit shall be the vertical plane of the undecorated finished interior of the walls bounding the unit extended to intersections of each other and with the upper and lower boundaries.

4.3 Boundaries - Further Defined. The boundaries of the unit shall not include all of those spaces and improvements lying beneath the undecorated and/or unfinished inner surfaces of the perimeter walls and floors, and those surfaces above the undecorated and/or unfinished inner surfaces of the ceilings of each unit, and further shall not include those spaces and improvements lying beneath the undecorated and/or unfinished inner surfaces of all interior bearing walls and/or bearing partitions, and further, shall exclude all pipes, ducts, wires, conduit, and other facilities running through any interior wall or partition for the utility services to other units and/or for common elements.

of the Association. Each unit owner shall be responsible for a portion of the common expenses and costs. Such share shall be in the same percentage of the undivided share in the common elements appurtenant to his unit, as set forth in paragraph 7 of the Declaration.

8.2 Any common surplus of the Association shall be owned by each of the unit owners in the same proportion as their percentage liability for common expenses.

9. Maintenance, Alterations and Improvements. Responsibility for the maintenance of the condominium property and restrictions upon its alterations and improvements shall be as follows:

9.1 Units.

A. By the Association. The Association shall maintain, repair and replace, at the Association's expense:

(1) All portions of a unit building contributing to the support of the unit building, which portions shall include, but are not limited to outside walls of the unit building and all fixtures on its exterior, those portions of boundary walls not a part of unit, floor and ceiling slabs, load-bearing columns and load-bearing walls;

(2) All conduits, ducts, plumbing, wiring and other facilities for the furnishing of utility services contained in the portion of a unit maintained by the Association; and, all such facilities contained within a unit that services part or parts of the condominium other than the unit within which contained;

(3) All incidental damage caused to a unit by such work immediately above-described shall be repaired promptly at the expense of the Association.

B. By the unit owner. The responsibility of the unit owner shall be as follows:

(1) To keep and maintain his unit, its equipment, and appurtenances in good order, condition and repair, and to perform promptly all maintenance and repair work within his unit which, if omitted, would affect the condominium in its entirety or in a part belonging to other owners or would affect other condominiums subject to the foregoing plan of development, being expressly responsible for the damages and liability which his failure to do so may engender. Notwithstanding anything contained in this Declaration, the owner of each unit shall be liable and responsible for the maintenance, repair and replacement, as the case may be, of all windows and all exterior doors, including sliding glass doors and all air conditioning and heating equipment, stoves, refrigerators, fans and other appliances and equipment, including pipes, wiring, ducts, fixtures and/or their connections required to provide water, light, power, air conditioning and heating, telephone, sewage and sanitary sewer service to his unit which may now or hereafter be situated in his unit.

(2) To maintain, repair and replace any and all walls, ceilings and floor interior surfaces, painting, decorating and furnishings, and all other accessories which such owner may desire to place and maintain in his unit.

(3) Where applicable, to maintain and keep in a neat and trim condition the floor, interior walls, screening and railings of sundecks and balconies.

(4) To promptly report to the Association any defect or need for repairs for which the Association is responsible.

(5) Plumbing and electrical repairs within a unit shall be paid for and be a financial obligation of the unit owner.

(6) Any officer of the Association or any agent of the Board shall have the irrevocable right to have access to each unit from time to time during reasonable hours as may be necessary for inspection, maintenance, repair or replacement of any Common Element therein or accessible therefrom, or for making emergency repairs therein necessary to prevent damage to the Common Elements or to another unit or units.

(7) Not to paint or otherwise decorate or change the appearance of any portion of the exterior of the unit building.

C. Alteration and Improvement. Except as elsewhere reserved to Developer, neither a unit owner nor the Association shall make any alteration in the portions of a unit that are to be maintained by the Association, or remove any portion of such, or make any additions to them, or do anything that would jeopardize the safety or soundness of the unit building, or impair any easement, without first obtaining approval in writing of owners of all units in the building in which such work is to be done and approval of the Board of Directors of the Association. A copy of plans for all such work prepared by an architect licensed to practice in this state shall be filed with the Association prior to the start of the work.

9.2 Common Elements.

A. By the Association. The maintenance and operation of the common elements including the repair, maintenance, and replacement of any and all landscaping, and other improvements and facilities shall be the responsibility of the Association as a common expense.

B. Alteration and Improvement. After the completion of the improvements included in the common elements contemplated by this Declaration, there shall be no alteration or further improvement of the real property constituting the common elements without prior approval in writing by the owners of not less than seventy-five (75%) percent of the members of the Association, if the cost of the same shall be in common expense which exceeds in cumulative expenditure for the calendar year the sum of Two Thousand (\$2,000.00) Dollars. Any such alteration or improvement shall not interfere with the rights of any unit owner herein that acquires its title

as a result of owning a mortgage upon the unit owned, unless such owner shall approve the alteration or improvement and this shall be so whether the title is acquired by deed from the mortgagor or through foreclosure proceedings. The share of any cost not so assessed shall be assessed to the other unit owners in the proportion that their shares for the common expenses bear to each other.

There shall be no change in the shares and rights of a unit owner in the common elements, altered or further improved, whether or not the unit owner contributes to the costs of such alteration or improvements.

9.3 Enforcement of Maintenance. In the event the owner of a unit fails to maintain it as required above, the Association, Developer or any other unit owner shall have the right to proceed to any appropriate court to seek compliance with the foregoing provisions, or the Association shall have the right to assess the unit owner and the unit for the necessary sums to put the improvements within the unit in good condition. After such assessment, the Association shall have the right to have its employees or agents enter the unit and do the necessary work to enforce compliance with the above provision.

Further, in the event a unit owner violates any of the provisions of this section, the Developer and/or the Association shall have the right to take any and all such steps as may be necessary to remedy such violation, including, but not limited to, entry of the subject unit with or without the consent of the unit owner, and the repair and maintenance of any item requiring same, all at the expense of the unit owner.

10. Use Restrictions. The use of the property of the condominium shall be in accordance with the following provisions:

10.1 Units.

A. Each of the units shall be occupied only by an owner, his family, his servants and guests, as a residence and for no other purpose. Children under fifteen (15) years of age are not permitted as residents.

B. Except as reserved to Developer, no unit may be divided or sub-divided into a smaller unit nor any portion thereof sold or otherwise transferred without first amending this Declaration to show the changes in the unit to be affected thereby.

C. Nothing shall be hung, displayed or placed on the exterior walls, floors or windows of the unit building without the prior written consent of the Board of Directors of the Association.

D. No clothes lines or similar devices shall be allowed on any patios or balconies of the condominium property, or any other part of the condominium property, without the written consent of the Board of Directors of the Association.

E. No owner shall make, allow or cause to be made any structural addition or alteration to his unit or to the common elements without the prior written consent of the Association.

10.2 Common Elements and Limited Common Elements. The common elements and limited common elements shall be used only for the purpose for which they are intended.

10.3 Nuisances. No nuisances shall be allowed upon the condominium property, nor any use or practice which is the source of annoyance to residents or which interferes with the peaceful possession and proper use of the property by its residents. All parts of the property shall be kept in a clean and sanitary condition and no rubbish, refuse or garbage allowed to accumulate or any fire hazard allowed to exist. No unit owner shall permit any use of his unit or of the common elements which will increase the rate of insurance upon the condominium property.

10.4 Lawful Use. No immoral, improper, offensive or unlawful use shall be made of the condominium property or any part thereof; and, all valid laws, zoning ordinances and regulations of all governmental bodies having jurisdiction thereof shall be observed. The responsibility of meeting the requirements of governmental bodies which require maintenance, modification or repair of the condominium property shall be the same as the responsibility for the maintenance and repair of the property concerned.

10.5 Signs. No signs shall be displayed from a unit or on common property except such signs as shall have advance written approval by the Developer or the Association.

10.6 Rules and Regulations. Reasonable rules and regulations concerning the use of the condominium property may be made and amended from time to time by the Association in the manner provided by its Articles of Incorporation and By-Laws. Copies of such regulations and amendments thereto shall be furnished by the Association to all unit owners and residents of the condominium upon request. A copy of the initial Rules and Regulations is attached hereto as Exhibit E.

10.7 Proviso. Provided, however, that until Developer has completed all of the contemplated improvements and closed the sales of all of the units of this condominium, neither the unit owners nor the Association nor the use of the condominium property shall interfere with the completion of all contemplated improvements and the sale of all units within BARWOOD CONDOMINIUM IV, and the Developer may make such use of the unsold units and common areas as may facilitate such completion and sale, including but not limited to maintenance of a sales office, the showing of the property and the display of signs.

11. Maintenance of Community Interests. In order to maintain a community of congenial residents who are financially responsible

and thus protect the value of the units, the transfer of units by any owner other than the Developer shall be subject to the following provisions so long as the condominium exists and the unit building in useful condition exists upon the land, which provisions each unit owner covenants to observe:

11.1 Transfer Subject to Approval.

A. Sale. No unit owner may dispose of a unit or any interest therein by sale without approval of the Association, except to another unit owner.

B. Lease. No unit owner may dispose of a unit or any interest therein by lease without approval of the Association except to another unit owner.

C. Gift. If any unit owner shall acquire his title by gift, the continuance of his ownership of his unit shall be subject to the approval of the Association.

D. Devise or inheritance. If any unit owner shall acquire his title by devise or inheritance, the continuance of his ownership of his unit shall be subject to the approval of the Association.

E. Other transfers. If any unit owner shall acquire his title by any manner not heretofore considered in the foregoing subsections, the continuance of his ownership of his unit shall be subject to the approval of the Association.

11.2 Approval by Association. The approval of the Association which is required for the transfer of ownership of units shall be obtained in the following manner:

A. Notice to Association.

(1) Sale. A unit owner intending to make a bona fide sale of his unit or any interest therein shall give the Association notice of such intention, together with the name and address of the intended purchaser and such other information concerning the intended purchaser as the Association may reasonably require. Such notice at the unit owner's option may include a demand by the unit owner that the Association furnish a purchaser, if the proposed purchaser is not approved; and, if such demand is made, the notice shall be accompanied by an executed copy of the proposed contract to sell.

(2) Lease. A unit owner intending to make a bona fide lease of his unit or any interest therein shall give to the Association notice of such intention, together with the name and address of the intended lessee as Association may reasonably require, and an executed copy of the proposed lease.

(3) Gift; devise; inheritance; other transfers. A unit owner who has obtained his title by gift, devise or inheritance, or by any other manner not heretofore considered, shall give to the Association notice of the acquiring of his

title, together with such information concerning the unit owner as the Association may reasonably require, and a certified copy of the instrument evidencing the owner's title.

(4) Failure to give notice. If the notice to the Association herein required is not given, then at any time after receiving knowledge of a transaction or event transferring ownership or possession of a unit, the Association at its election and without notice may approve or disapprove the transaction or ownership. If the Association disapproves the transaction or ownership, the Association shall proceed as if it had received the required notice on the date of such disapproval.

B. Certificate of Approval.

(1) Sale. If the proposed transaction is a sale, then within thirty (30) days after receipt of such notice and information the Association must either approve or disapprove the proposed transaction. If approved, the approval shall be stated in a certificate executed by the President or a Vice President and Secretary or by the President or a Vice President and having the corporate seal affixed in recordable form and shall be delivered to the purchaser and shall be recorded in the public records of Palm Beach County, Florida, at the expense of the purchaser, said approval to be in the form of Exhibit One to the By-Laws.

(2) Lease. If the proposed transaction is a lease, then within thirty (30) days after receipt of such notice and information the Association must either approve or disapprove the proposed transaction. If approved, the approval shall be stated in a certificate executed by the President and Secretary in recordable form, which at the election of the Association, shall be delivered to the lessee or shall be recorded in the public records of Palm Beach County, Florida, at the expense of the lessee.

(3) Gift; devise; inheritance; other transfer. If the unit owner giving notice has acquired his title by gift, devise, inheritance or in any other manner, then within thirty (30) days after receipt of such notice and information, the Association must either approve or disapprove the continuance of the unit owner's ownership of his unit. If approved, the approval shall be stated in a certificate executed by the President and Secretary in recordable form and shall be delivered to the unit owner and shall be recorded in the public records of Palm Beach County, Florida, at the expense of the unit owner.

C. Approval of corporate owner or purchaser. Inasmuch as the condominium may be used only for residential purposes and a corporation cannot occupy a unit for such use, if the unit owner or purchaser of a unit is a corporation, the approval of ownership by the corporation shall be conditioned upon requiring that all persons occupying the unit be approved by the Association.

11.3 Disapproval by the Association. If the Association shall disapprove a transfer of ownership of a unit, the matter shall be disposed of in the following manner:

A. Sale. If the proposed transaction is a sale, and if the notice of sale given by the unit owner shall so demand, then within thirty (30) days after receipt of such notice and information the Association shall deliver or mail by certified mail to the unit owner an agreement to purchase by a purchaser approved by the Association who will purchase and to whom the unit owner must sell the unit upon the following terms:

(1) At the option of the purchaser to be stated in the agreement, the price to be paid shall be that stated in the disapproved contract to sell, or shall be the fair market value determined by arbitration in accordance with the then existing rules of the American Arbitration Association who shall base their determination upon an average of their appraisals of the unit; and, a judgment of specific performance of the sale upon the award rendered by the arbitrators may be entered in any court of competent jurisdiction. The expense of the arbitration shall be paid by the Purchaser.

(2) The purchase price shall be paid in cash.

(3) The sale shall be closed within thirty (30) days after the delivery or mailing of said agreement to purchase, or within ten (10) days after the determination of the sale price if such is by arbitration, whichever is the later.

(4) A certificate of the Association executed by its President or a Vice President and Secretary, or by its President or a Vice President and having the corporate seal affixed, and approving the purchaser shall be recorded in the public records of Palm Beach County, Florida, at the expense of the purchaser.

(5) If the Association shall fail to provide a purchaser upon the demand of the unit owner in the manner provided, or if a purchaser furnished by the Association shall default in his agreement to purchase, then notwithstanding the disapproval, such ownership shall be deemed to have been approved and the Association shall furnish a Certificate of Approval as elsewhere provided, which shall be recorded in the public records of Palm Beach County, Florida, at the expense of the unit owner.

11.4 Mortgage. A unit owner may not mortgage his unit, nor any interest therein, without the approval of the Association except to an institutional mortgagee, as hereinbefore defined. The approval of any other mortgagee may be obtained upon conditions determined by the Board of Directors of the Association, and said approval shall be, if granted, prepared in recordable form, executed by the President and Secretary of the Association. Where a unit owner sells his unit and takes back a purchase money mortgage, the approval of the Association shall not be required.

11.5 Exceptions. The foregoing provisions of this section entitled "Maintenance of Community Interests" shall not apply to a transfer to or purchase by a bank, life insurance company, or federal savings and loan association which acquires title as a result of owning a mortgage upon the unit concerned, and this shall be so whether the title is acquired by deed from the mortgagor or through foreclosure proceedings; nor shall such provisions apply to a transfer, sale or lease by a bank, life insurance company or federal savings and loan association which so acquires its title. Neither shall such provisions require the approval of a purchaser who acquires the title to a unit at a duly advertised public sale with open bidding which is provided by law, such as, but not limited to execution sale, foreclosure sale, judicial sale or tax sale. Neither shall any of the provisions of this section apply to the sale or lease of any unit by the Developer.

11.6 Unauthorized transactions. Any sale, mortgage or lease which is not authorized pursuant to the terms of this Declaration shall be void unless subsequently approved by the Association.

11.7 Notice of Lien or Suit.

A. Notice of Lien. A unit owner shall give notice to the Association of every lien upon his unit other than for permitted mortgages, taxes and special assessments within five (5) days after the attaching of the lien.

B. Notice of Suit. A unit owner shall give notice to the Association of every suit or other proceedings which may affect the title to his unit, such notice to be given within five (5) days after the unit owner received knowledge thereof.

Failure to comply with this subsection concerning liens will not affect the validity of any judicial sale.

11.8 Purchase of Unit by Association. The Association shall have the power to purchase units, subject to the following provisions:

A. Decision. The decision of the Association to purchase a unit shall be made by its directors, without approval of its members except as hereinafter provided.

B. Limitation. If at any one time the Association be the owner or agreed purchaser of fifteen (15) or more units, it may not purchase any additional unit without the prior written approval of seventy five (75%) percent of the members eligible to vote thereon. A member whose unit is the subject matter of the proposed purchase shall be ineligible to vote thereon. Provided, however, that the foregoing limitation shall not apply to units to be purchased at public sale resulting from a foreclosure of the Association's lien for delinquent assessments where the bid of the Association does not exceed the amount found due the Association, or to be acquired by the Association in lieu of foreclosure of such lien if the consideration therefor does not exceed the cancellation of such lien.

11.9 Rights of the Developer. Notwithstanding anything herein to the contrary, until the Developer has sold all of the units within BARWOOD CONDOMINIUM IV, A CONDOMINIUM, in each case where the Association shall have the right to purchase a unit or find a purchaser by reason of its refusal to approve a sale or other transfer, the Developer shall have the right of first refusal to purchase such unit for itself upon the same terms and conditions available to the Association.

12. Parking Space. The following provisions will be applicable to the transfer and assignment of parking spaces.

12.1 Assignment of Parking Spaces. Each parking space exists as a Limited Common Element and is identified, described and located on Exhibit A. Upon the conveyance by the Developer of such parking space in the Limited Common Elements to a unit, the owners of such unit shall have the exclusive right to the use thereof without separate charge therefor by the Association, although nothing herein contained shall be construed as relieving such owner from any portion of any assessment for common expenses made against a unit, as herein provided, it being the intent that the cost of maintenance and administration of Limited Common Elements shall be included as part of the common expense applicable to all units for purposes of assessment. Upon such conveyance, the owner of the unit to whom such conveyance is made shall have the exclusive right of such parking space and the parking space shall become an appurtenance to said unit, and upon the conveyance of or passing of title to the unit to which a parking space conveyance is made, such interest in the Limited Common Element (parking space) shall pass as an appurtenance thereto in the same manner as the undivided interest in the Common Elements appurtenant to such unit. Parking spaces designated as Guest Parking Spaces shall be a part of the Common Elements and shall be under the control and jurisdiction of the Condominium Association except that no Guest Parking Space may be assigned to a unit or otherwise transferred unless approved in the same manner as required to amend this Declaration of Condominium as provided in paragraph 19.

12.2 Restrictions on Separate Transfer of Parking Spaces. No conveyance, assignment, transfer or conveyance of title in any manner whatsoever to use a parking space constituting Limited Common Elements may be made or accomplished separately from the conveyance or passing of title to the unit to which it is appurtenant.

13. Easements. Each of the following easements is a covenant running with the land of the condominium and, notwithstanding any of the other provisions of this Declaration, may not be substantially amended or revoked in such a way as to unreasonably interfere with their proper and intended use and purpose, and shall survive the termination of the Condominium and the exclusion of any of the lands of the Condominium from the Condominium.

13.1 Utilities. As may be required for utility services in order to adequately serve the Condominium, provided, however, easements through a unit shall be only according to the plans and specifications for the building or as the building is actually constructed, unless approved, in writing, by the unit owner.

13.2 Pedestrian and Vehicular Traffic. For pedestrian traffic over, through and across sidewalks, paths, lands, and walks, as the same may from time to time exist, upon the common elements; and, for the vehicular traffic over, through and across such portions of the common elements as may be from time to time paved and intended for such purposes.

13.3 Support. Every portion of a unit contributing to the support of the unit building or an adjacent unit shall be burdened with an easement of support for the benefit of all other units and common elements in the building.

13.4 Perpetual Non-Exclusive Easement in Common Property. The common property shall be, and the same is hereby declared to be subject to a perpetual non-exclusive easement in favor of all of the owners of units in the condominium for their use and the use of their immediate families, guests and invitees, for all proper and normal purposes, and for the furnishing of services and facilities for which the same are reasonably intended, for the enjoyment of said owners.

This easement shall not apply to any Unit Building and the real property contained therein prior to the improvements thereon and therein having been completed by the Developer.

13.5 Right of Entry into Private Dwelling in Emergencies. In case of emergency originating in or threatening any units, regardless of whether the owner is present at the time of such emergency, the Board of Directors of Association, or any other person authorized by it, or the building manager or managing agent, shall have the right to enter such unit for the purpose of remedying or abating the cause of such emergency, and such right of entry shall be immediate, and to facilitate entry in the event of any such emergency, the owner of each unit, if required by the Association, shall deposit under the control of the Association a key to such unit.

13.6. Right of Entry for Maintenance of Common Property. Whenever it is necessary to enter any unit for the purpose of performing any maintenance, alteration, or repair to any portion of the Common Property, the owner of each unit shall permit other owners by their representative, or the duly constituted and authorized agent of the Association, to enter such unit for such purpose, provided that such entry shall be made only at reasonable times and with reasonable advance notice.

13.7 Easement for Unintentional and Non-Negligent Encroachments. In the event that any unit shall encroach upon any Common Property for any reason not caused by the purposeful or negligent act of the unit owner or owners, or agents of such owner or owners, then an easement appurtenant to such unit shall exist for the continuation of such encroachment onto the Common Property for so long as such encroachment shall naturally exist; and, in the event that any portion of the Common Property shall encroach upon any unit, then

an easement shall exist for the continuance of such encroachment of the Common Property into any unit for so long as such encroachment shall naturally exist.

13.8 Air Space. An exclusive easement for the use of the air space occupied by the condominium unit as it exists at any particular time and as the unit may lawfully be altered.

13.9 Easements or Encroachments by the perimeter walls, ceilings, and floors surrounding each condominium unit.

13.10 Easement for overhanging troughs or gutters, downspouts, and the discharge therefrom of rainwater and the subsequent flow thereof over condominium units or any of them.

14. Association. In order to provide for the efficient and effective administration of this condominium by the owners of units, a non-profit corporation known and designated as BARWOOD CONDOMINIUM IV ASSOCIATION, INC., has been organized under the laws of the State of Florida and said corporation shall administer the operation and management of this condominium, and undertake and perform all acts and duties incident thereto in accordance with the terms, provisions and conditions of this Declaration of Condominium, and in accordance with the terms of the Articles of Incorporation of the Association, its By-Laws and the rules and regulations promulgated by the Association from time to time.

14.1 Articles of Incorporation. A copy of the Articles of Incorporation of the Association is attached as Exhibit C.

14.2 The By-Laws of the Association shall be the by-laws of the condominium, a copy of which is attached as Exhibit D.

14.3 Limitation upon Liability of Association. Notwithstanding the duty of the Association to maintain and repair parts of the condominium property, the Association shall not be liable to unit owners for injury or damage, other than the cost of maintenance and repair, caused by any latent condition of the property to be maintained and repaired by the Association, or caused by the elements or other owners or persons.

14.4 Restraint Upon Assignment of Shares in Assets. The shares of members in the funds and assets of the Association cannot be assigned, hypothecated or transferred in any manner except as an appurtenance to his unit.

14.5 Approval or Disapproval of Matters. Whenever the decision of an owner is required upon any matter, whether or not the subject of an Association meeting, such decision shall be expressed in accordance with the By-Laws of the Association.

14.6 Membership. The record owners of all units in this condominium shall be members of the Association, and no other persons or entities shall be entitled to membership except for subscribers to the Articles. Membership shall be established by acquisition of ownership of fee title to or fee interest in a condominium parcel in said condominiums, whether by conveyance, devise, judicial decree, or otherwise subject to the provisions of the Declaration, and by the recordation among the Public Records of Palm Beach County, Florida, of the Deed or other instrument establishing the acquisition and designating the parcel affected thereby and by the delivery to the Association of a true copy of such recorded Deed or other instrument. The new owner designated in such deed or other instrument shall thereupon become a member of the Association, and the membership of the prior owner as to the parcel designated shall be terminated.

14.7 Voting. On all matters as to which the membership shall be entitled to vote, there shall be only one vote for each unit.

15. Insurance. The insurance other than title insurance which shall be carried upon the condominium property and the property of the unit owners shall be governed by the following provisions:

15.1 Authority to Purchase. All insurance policies upon the condominium property shall be purchased by the Association for the benefit of the Association and the unit owners and their mortgagees as their interest may appear, and provisions shall be made for the issuance of certificates or mortgagee endorsements to the mortgagees or unit owners. Such policies and endorsements shall be deposited with the Insurance Trustee. Unit owners may obtain insurance coverage at their own expense upon their personal property and for their personal liability and living expense. All policies purchased by the Association must be written by insurance companies authorized to do business in Florida, with offices or agents in Florida.

15.2 Coverage.

A. Casualty. All buildings and improvements upon the land including units and all personal property of the Association included in the condominium property are to be insured in an amount equal to the maximum insurable replacement value, excluding foundations and excavation costs as determined annually by the Board of Directors of the Association, and all such insurance must be obtained, if possible, from the same company. Such coverage affords protection against:

(1) Loss or damage by fire and other hazards covered by a standard extended coverage endorsement.

(2) Such other risks as from time to time shall be customarily covered with respect to buildings similar in construction, location and use, including but not limited to, vandalism and malicious mischief.

B. Public Liability in such amounts and with such coverage as shall be required by the Board of the Association, with cross-liability endorsements to cover liability of the unit owners as a group to a unit owner.

C. Workmen's Compensation as shall be required to meet the requirements of the law.

15.3 Premiums. Premiums for insurance policies purchased by the Association shall be paid by the Association.

15.4 Assured. All insurance policies purchased by the Association shall be for the benefit of the Association and the unit owners and their mortgagees as their interest may appear and shall provide that all proceeds covering casualty losses shall be paid to any national bank in Broward or Palm Beach Counties with trust powers as may be approved by the Board of Directors of the Association, which trustee is herein referred to as the Insurance Trustee. The Insurance Trustee shall not be liable for payments of premiums nor for the renewal or sufficiency of the policies nor for the failure to collect any insurance proceeds. The duty of the Insurance Trustee shall be to receive such proceeds as are paid and hold the same in trust for the purposes elsewhere stated herein and for the benefit of the unit owners and their mortgagees in the following shares, but which shares need not be set forth in the records of the Insurance Trustee.

A. Common Elements. Proceeds on account of common elements shall be held in as many undivided shares as there are units in each building, the shares of each unit owner being the same as his share in the common elements, as same are hereinabove stated.

B. Units. Proceeds on account of units shall be held in the following undivided shares:

(1) Partial destruction; when the buildings are to be restroed, for the owners of damaged units in proportion to the cost of repairing the damage suffered by each unit owner.

(2) Total destruction of the buildings or when the buildings are to be restored to owners of all units in the buildings, each owner's share being in proportion to his share in the common elements appurtenant to his unit.

(3) Mortgagee. In the event a mortgagee endorsement has been issued as to a unit, the share of the unit owner shall be held in trust for the Mortgagee and the unit owner as their interests appear. In no event shall any mortgagee have the right to demand the application of insurance proceeds to any mortgage or mortgages which it may hold against units, except to such extent as said insurance proceeds may exceed the actual cost of repair or restoration of the damaged building or buildings and no mortgagee shall have any right to participate in the determination as to whether or not improvements will be restored after casualty.

15.5 Distribution of Proceeds. Proceeds of insurance policies received by the Insurance Trustee shall be distributed to or for the benefit of the beneficial owners in the following manner:

A. Expense of the Trust. All expenses of the Insurance Trustee shall be first paid or provisions made therefor.

B. Reconstruction or repair. If the damage for which the proceeds are paid is to be repaired or reconstructed, the remaining proceeds shall be paid to defray the costs thereof as elsewhere provided. Any proceeds remaining after defraying such costs shall be distributed to the beneficial owners, remittances to unit owners and their mortgagees being payable jointly to them. This is a covenant for the benefit of any mortgagee of a unit and may be enforced by such mortgagee.

C. Failure to Reconstruct or Repair. If it is determined in the manner elsewhere provided that the damages for which the proceeds are paid shall not be reconstructed or repaired, the remaining proceeds shall be distributed to the beneficial owners, remittances to unit owners and their mortgagees being payable jointly to them. This is a covenant for the benefit of any mortgagee of a unit and may be enforced by such mortgagee.

D. Certificate. In making distribution to unit owners and their mortgagees, the Insurance Trustee may rely upon a certificate of the Association as to the names of the unit owners and their respective shares of the distributor.

E. Association as Agent. The Association is hereby irrevocably appointed agent for each unit owner to adjust all claims arising under insurance policies purchased by the Association.

16. Reconstruction or Repair - After Casualty.

16.1 Determination to Reconstruct or Repair. If any part of the condominium property shall be damaged by casualty, whether or not it shall be reconstructed or repaired shall be determined in the following manner:

A. Common Element. If the damaged improvement is a common element, the damaged property to be reconstructed or repaired shall be determined in the manner elsewhere provided that the condominium shall be terminated.

B. Unit Buildings.

(1) Lesser damage. If the damaged improvement is a part of the unit buildings, and if units to which fifty (50%) percent of the common elements or appurtenances are found by the Board of Directors of the Association to be tenantable, the damaged property shall be reconstructed or repaired, unless within sixty (60) days after the casualty it is determined in the manner elsewhere provided that the condominium shall be terminated.

(2) Major Damage. If the damaged improvement is part of the unit buildings, and if units to which more than fifty (50%) percent of the common elements are appurtenant are found by the Board of Directors of the Association to be not tenantable, then the damaged property will not be reconstructed or repaired and the condominium will be terminated as elsewhere provided, unless within sixty (60) days after the casualty the owners of seventy-five (75%) percent of the common elements agree in writing to such reconstruction and repair.

C. Certificate. The Insurance Trustee may rely upon a Certificate of the Association made by the President and Secretary to determine whether or not the damaged property is to be constructed or repaired.

16.2 Plans and Specifications. Any reconstruction or repair

must be substantially in accordance with the plans and specifications for the original buildings, portions of which are attached hereto as exhibits, or if not, then according to plans and specifications approved by the Board of Directors of the Association, and if the damaged property is the unit buildings, by the owners of not less than seventy-five (75%) percent of the common elements, including the owners of all damaged units, which approval shall not be unreasonably withheld.

16.3 Responsibility. If the damage is only to those parts of a unit for which the responsibility of maintenance and repair is that of the unit owner, then the unit owner shall be responsible for reconstruction and repair after casualty. In all other instances, the responsibility of reconstruction and casualty shall be that of the Association.

16.4 Estimates of Costs. Immediately after a casualty causing damage to property for which the Association has the responsibility of maintenance and repair, the Association shall obtain reliable and detailed estimates of the cost to rebuild or repair.

16.5 Assessments. If the proceeds of insurance are not sufficient to defray the estimated costs of reconstruction and repair by the Association, or if at any time during the reconstruction and repair the funds for the payment of the costs hereof are insufficient, assessments shall be made against the unit owners who own the damaged units, and against all unit owners in the case of damage to common elements, in sufficient amounts to provide funds to pay the estimated costs. Such assessments against the unit owners for damage to units shall be in proportion to the cost of reconstruction and repair of their respective units. Such assessments on account of damage to common elements shall be in proportion to the owner's share in the common elements.

16.6 Deductible Provision. The funds necessary to cover any deductible amount under an insurance policy against which a claim is made shall be a common expense.

16.7 Construction funds. The funds for payment of costs of reconstruction and repair after casualty which shall consist of proceeds of insurance held by the Insurance Trustee and funds collected by the Association from assessments against unit owners, shall be distributed in payment of such costs in the following manner:

A. Association. If costs of reconstruction and repair which are the responsibility of the Association are more than Five Thousand (\$5,000.00) Dollars, then the sums paid upon assessments to meet such costs shall be deposited by the Association with the Insurance Trustee. In all other cases the Association shall hold the sums paid upon such assessments and disburse the same in payment of the costs of reconstruction and repair.

B. Insurance Trustee. The proceeds of insurance collected on account of a casualty, and the sums deposited with the Insurance

Trustee by the Association from collections of assessments against unit owners on account of such casualty, shall constitute a construction fund which shall be disbursed in payment of the costs of reconstruction and repair in the following manner:

(1) Unit owner. The portion of insurance proceeds representing damage for which the responsibility of reconstruction and repair lies with the unit owner shall be paid by the Insurance Trustee to the unit owner, or if there is a mortgagee endorsement, then to the unit owner and the mortgagee jointly.

(2) Association - Lesser Damage. If the amount of estimated costs of reconstruction and repair which is the responsibility of the Association is less than Five Thousand (\$5,000.00) Dollars, then the construction fund shall be disbursed in payment of such costs upon the order of the Association; provided, however, that upon request to the Insurance Trustee by a mortgagee which is a beneficiary of an insurance policy the proceeds of which are included in the construction fund, such fund shall be disbursed in the manner hereafter provided for the reconstruction and repair of major damage.

(3) Association - Major Damage. If the amount of the estimated costs of reconstruction and repair which is the responsibility of the Association is more than Five Thousand (\$5,000.00) Dollars, then the construction fund shall be disbursed in payment of such costs in the manner required by the Board of Directors of the Association and upon approval of an architect qualified to practice in the State of Florida and employed by the Association to supervise the work.

(4) Surplus. It shall be presumed that the first monies disbursed in payment of costs of reconstruction and repair shall be from insurance proceeds. If there is a balance in a construction fund after payment of all costs of the reconstruction and repair for which the fund is established, such balance shall be distributed to the beneficial owners of the fund in the manner elsewhere stated; except, however, that the part of a distribution to a beneficial owner which is not in excess of assessments paid by such owner into the construction fund shall not be made payable to any mortgagee.

(5) Certificate. Notwithstanding the provisions herein, the Insurance Trustee shall not be required to determine whether or not sums paid by unit owners upon assessments shall be deposited by the Association with the Insurance Trustee, not to determine whether the disbursements from the construction fund are to be upon the order of the Association or upon approval of an architect or otherwise, nor whether a disbursement is to be made from the construction fund nor to determine whether surplus funds to be distributed are less than the assessment paid by owners. Instead, the Insurance Trustee may rely upon a Certificate of the Association made by its President and Secretary as to any or all of such matters and stating that the sums to be paid are due and properly payable and stating the name of the payee and the

amount to be paid; provided, that when a mortgagee is herein required to be named as payee, the Insurance Trustee shall also name the mortgagee as payee of any distribution of insurance proceeds to a unit owner and further provided that when the Association or a mortgagee which is the beneficiary of an insurance policy the proceeds of which are included in the construction funds, so requires, the approval of an architect named by the Association shall first be obtained by the Association upon disbursements in payment of costs of reconstruction and repair.

17. Assessments.

The making and collecting of assessments against unit owners for the common expenses shall be pursuant to the By-Laws and subject to the following provisions:

17.1 Share of the Common Expenses. Each unit owner shall be liable for a proportionate share of the common expenses and shall share of the common surplus, such shares being heretofore set forth. A unit owner, regardless of how title is acquired, including without limitation a purchaser at a judicial sale, shall be liable for all assessments coming due while he is the owner of a unit. In a voluntary conveyance the grantee shall be jointly and severally liable with the grantor for all unpaid assessments against the latter for his share of the common expenses up to the time of such voluntary conveyance, without prejudice to the rights of the grantee to recover from the grantor the amounts paid by the grantee therefor.

17.2 Non-Waiver. The liability for assessments may not be avoided by waiver of the use of enjoyment of any common element or by the abandonment of the unit for which the assessment is made.

17.3 Interest, Application of Payments. Assessments and installments on such assessments paid on or before ten days after date when due shall not bear interest, but all sums not paid on or before ten days after date when due shall bear interest at the rate of ten (10%) percent per annum from the date when due until paid. All payments upon account shall be first applied to interest and then to the assessment payment first due.

17.4 Lien for Assessments. The Association shall have a lien on each condominium parcel for any unpaid assessments, together with interest thereon, against the owner of such condominium parcel, together with a lien on all tangible personal property located within the unit, except that such lien upon the aforesaid tangible personal property shall be subordinate to prior bona fide liens of record. Reasonable attorneys' fees incurred by the Association incident to the collection of such assessment for the enforcement of such lien, together with all sums advanced and paid by the Association for taxes and payment on account of superior mortgages, liens or encumbrances which may be required to be advanced by the Association in order to

17.7 Assignment of Claim and Lien Rights. The Association, acting through its Board of Directors, shall have the right to assign its claim and lien rights for the recovery of any unpaid assessments to the Developer, or to any unit owner or group of unit owners, or to any third party.

17.8 Unpaid Assessments - Certificates. Any unit owner shall have the right to require from the Association a certificate showing the amount of unpaid assessments against him with respect to his condominium parcel. The holder of a mortgage or other lien shall have the same right as to any condominium parcel upon which he has a lien. Any person other than the owner who relies upon such certificate shall be protected thereby.

18. Compliance and Default. Each unit owner shall be governed by and shall comply with the terms of the Declaration of Condominium, By-Laws and rules and regulations adopted pursuant thereto, and said documents and rules and regulations as they may be amended from time to time. Failure of Unit Owners to comply therewith shall entitle the Association or other unit owners to the following relief in addition to the remedies provided by the Condominium Act.

18.1 Negligence. A unit owner shall be liable for the expense of any maintenance, repair or replacement rendered necessary by his act, neglect or carelessness, or by that of any member of his family or his or their guests, employees, or lessee, but only to the extent that such expense is not met by the proceeds of insurance carried by the Association. Such liability shall include any increase in fire insurance rates occasioned by use, misuse, occupancy, or abandonment of a unit or its appurtenances, or of the common elements.

18.2 Costs and Attorneys' Fees. In any proceeding arising because of an alleged failure of a unit owner to comply with the terms of the Declaration, By-Laws and rules and regulations adopted pursuant thereto, and said documents and regulations as they may be amended from time to time, the prevailing party shall be entitled to recover the costs of the proceeding and such reasonable attorneys fees as may be awarded by the court.

18.3 No Waiver of Rights. The failure of the Association or any unit owner to enforce covenants, restrictions, or other provisions of the Condominium Act, this Declaration, the By-laws, or the regulations adopted pursuant thereto, shall not constitute waiver of the right to do so thereafter.

19. Amendment of Declaration. Except as elsewhere provided otherwise, this Declaration of Condominium may be amended in the following manner:

19.1 Notice. Notice of the subject matter of a proposed amendment shall be included in the notice of any meeting at which a proposed amendment is considered. Notwithstanding anything herein to the contrary, this Declaration may be amended by the Developer after completion of construction of the condominium to show that the wording of the Declaration and the exhibits attached thereto as a part thereof are correct representations of such building as constructed and that there can be determined from the Declaration and exhibits thereto, as amended, identification, location, dimension and size of the common elements and of the units in said condominium.

19.2 Resolution of Adoption. A resolution adopting a proposed amendment may be proposed by either the Board of Directors of the Association or by the members of the Association. Directors and members not present in person or by proxy at the meeting considering the amendment may express their approval in writing, providing such approval is delivered to the Secretary at or prior to the meeting. Except as elsewhere provided, such approvals must be either by:

A. Not less than seventy-five (75%) of the votes of the entire membership of the Board of Directors and by not less than seventy-five (75%) percent of the votes of the entire membership of the Association; OR

B. Not less than eighty (80%) percent of the votes of the entire membership of the Association;

C. Until the Developer transfers control of the Association to the unit owners, only by all of the Directors, provided the amendment does not increase the number of units or alter the boundaries of the common elements.

19.3 Proviso. No amendment shall discriminate against any unit owner or against any unit, or class or group of units, unless the unit owners so affected and their institutional mortgagees shall consent; and, no amendment shall change any unit or the share in the common elements, and other of its appurtenances or increase the owner's share of the common elements, or other of its appurtenances or increase the owner's share of the common expenses except as hereinabove provided, unless the owner of the unit concerned and all such mortgagees as first above recited shall join in the execution of the amendment. Neither shall an amendment make any change in the section entitled "Insurance" nor in the section entitled "Reconstruction or Repair - After Casualty" unless the record owner of all mortgages upon the condominium shall join in the execution of the amendment; nor shall any amendment of this Declaration make any change which would in any way affect any of the rights, privileges, powers and options of the Developer unless the Developer shall join in the execution of such amendment.

19.4 Execution and Recording. A copy of each amendment shall be attached to a certificate certifying that the amendment was duly adopted, which certificate shall be executed by the officers of the Association with the formalities of a deed. The amendment shall be effective when such certificate and copy of the amendment are recorded in the public records of Palm Beach County, Florida.

20. Barwood Condominium Improvement Association, Inc. In order to operate and maintain the recreational facilities for each unit owner of Barwood Condominium, all phases, the Barwood Condominium Improvement Association, Inc., has been organized under the laws of the State of Florida and said corporation shall administer the areas subject to the Declaration of Covenants and Restrictions for Improvements and Maintenance in accordance with the terms and provisions of the Declaration of Condominium, the Articles of Incorporation of the Barwood Condominium Improvement Association, Inc., the By-Laws of the Barwood Condominium Improvement Association, Inc., and the Declaration of Covenants and Restrictions for Improvement and Maintenance encumbering the real property submitted to condominium

form of ownership by this Declaration of Condominium.

20.1 Articles of Incorporation. A copy of the Articles of Incorporation of the Barwood Condominium Improvement Association, Inc., is attached hereto and made a part hereof as Exhibit H.

20.2 The By-Laws of the Barwood Condominium Association, Inc., are attached hereto and made a part hereof as Exhibit J.

20.3 Restraint Upon Assignment of Shares in Assets. The shares of members in the funds and assets of the Barwood Condominium Improvement Association, Inc., cannot be assigned, hypothecated, or transferred in any manner except as an appurtenance to his unit.

20.4 Membership. The record owners of all units in Barwood Condominium IV, a Condominium, shall be members in the Barwood Condominium Improvement Association, Inc., as provided in the Articles of Incorporation, and By-Laws of the Barwood Condominium Improvement Association, Inc., and the Declaration of Covenants and Restrictions for Improvement and Maintenance. Membership shall be established by acquisition of ownership of fee title or fee interest in a condominium parcel in said condominium, whether by conveyance, devise, judicial decree, or otherwise, subject to the provisions of the Declaration, and by the recordation among the Public Records of Palm Beach County, Florida, of the Deed or other instrument establishing the acquisition and designating the parcel affected thereby and by the delivery to the Barwood Condominium Improvement Association, Inc., of a true copy of such recorded Deed or other instrument. The new owner designated in such deed or other instrument shall thereupon become a member of the Barwood Condominium Improvement Association, Inc., and the membership of the prior owner as to the parcel designated shall be terminated.

20.5 Additional Members. The record owners of all units in Barwood Condominium, Phases I through VI, shall be members in the Barwood Condominium Improvement Association, Inc., as each additional unit building is constructed and units therein sold. The commitment and development plan for phase construction is attached hereto and made a part hereof and identified as paragraph 14 to the Prospectus.

20.6 Voting. On all matters as to which the membership shall be entitled to vote, there shall be only one vote for each unit.

21. Assessments of Barwood Condominium Improvement Association, Inc. The making and collecting of assessments against unit owners shall be pursuant to the Articles of Incorporation and the By-Laws of Barwood Condominium Improvement Association, Inc., and the Declaration of Covenants and Restrictions for Improvement and Maintenance.

21.1 Share of the Assessment. Each unit owner shall be liable for an assessment. A unit owner, regardless of how title is acquired, including without limitation a purchaser at a judicial sale, shall be liable for all assessments coming due while he is the

owner of a unit. In a voluntary conveyance, the grantee shall be jointly and severally liable with the grantor for all unpaid assessments against the latter for his share of the common expenses up to the time of such voluntary conveyance, without prejudice to the rights of grantee to recover from the grantor the amounts paid by the grantee therefor.

21.2 Non-Waiver. The liability for assessments may not be avoided by waiver of the use of enjoyment or by abandonment of the unit for which the assessment is made.

21.3 Interest, Application of Payments. Assessments shall be paid when due and all sums not paid when due shall bear interest at the rate of ten (10%) percent per annum from the date when due until paid. All payments upon account shall be first applied to interest and then to the assessment payment first due.

21.4 Lien for Assessment. Barwood Condominium Improvement Association, Inc., shall have a lien on each condominium parcel for any unpaid assessments, together with interest thereon, against the owner of such condominium parcel, together with a lien on all tangible personal property located within the unit, except that such lien upon the aforesaid tangible personal property shall be subordinate to prior bona fide liens of record. Reasonable attorneys' fees incurred by the Barwood Condominium Improvement Association, Inc. incident to the collection of such assessment for the enforcement of such lien, together with all sums advanced and paid by the Barwood Condominium Improvement Association, Inc., in order to preserve and protect its lien shall be payable by the unit owner and secured by such lien. The Barwood Condominium Improvement Association, Inc.'s liens shall also include those sums advanced on behalf of each unit owner in payment of his obligations.

21.5 Collection and foreclosure. The Board of Directors of Barwood Condominium Improvement Association, Inc., may take such action as they deem necessary to collect assessments of the Barwood Condominium Improvement Association, Inc., by personal action, or by enforcing and foreclosing said lien, and may settle and compromise the same, if in the best interest of the Barwood Condominium Improvement Association, Inc. Said lien shall be of equal dignity and priority as the lien of the Barwood Condominium IV Association, Inc. The Barwood Condominium Improvement Association, Inc., shall be entitled to bid at any sale held pursuant to a suit to foreclose an assessment lien, and to apply as a cash credit against its bid, all sums due the Barwood Condominium Improvement Association, Inc., covered by the lien enforced. In case of such foreclosure, the unit owner shall be required to pay a reasonable rental for the condominium parcel and the plaintiff in such foreclosure shall be entitled to the appointment of a Receiver to collect same from the unit owner and/or occupant.

21.6 Liability of Mortgagee, Lienor or Judicial Sale Purchaser for Assessment. Where the mortgagee of an institutional mortgage of record or other purchaser of a unit obtains title to a condominium parcel as a result of foreclosure of the institutional mortgage, or when an institutional mortgagee of record accepts a deed to said condominium parcel in lieu of foreclosure, such acquirer of title, his successors and assigns, shall not be liable for assessment by the Barwood Condominium Improvement Association, Inc., pertaining to such condominium parcel, or chargeable to the former unit owner of such parcel which became due prior to the acquisition of title as a result of the foreclosure, or the acceptance of such deed in lieu of foreclosure. The owner by virtue of the acquiring of such title shall forthwith become liable for payment of the assessments, and such other expenses as may be chargeable to the owner of a condominium unit hereunder. However, any person who acquires an interest in a unit, except through foreclosure of an institutional mortgage of record, as specifically provided in the paragraph immediately preceding, including without limitation persons acquiring title by operation of law, including persons who became purchasers at judicial sales, shall not be entitled to occupancy until such time as all unpaid assessments due and owing by the former owner have been paid to the Barwood Condominium Improvement Association, Inc.

21.7 Assignment of Claim and Lien Rights. The Barwood Condominium Improvement Association, Inc., acting through its Board of Directors, shall have the right to assign its claim and lien rights for the recovery of any unpaid assessment to the Developer, or to any unit owner or group of unit owners, or to any condominium association, or to any third party.

21.8 Unpaid Assessments - Certificate. Any unit owner shall have the right to require from the Barwood Condominium Improvement Association, Inc., a certificate showing the amount of unpaid assessments against him with respect to this condominium parcel. The holder of a mortgage or other lien shall have the same right as to any condominium parcel upon which he has a lien. Any person other than the owner who relies upon such certificate shall be protected thereby.

22. Developer's Units and Privileges.

22.1 The Developer, at the time of filing of this Declaration, is the owner of all of the real property, individual units, and appurtenances comprising this condominium. Therefore, the Developer, until all of the units have been sold and closed, shall be irrevocably empowered, notwithstanding anything herein to the contrary, to sell, lease or rent units to any person approved by the Developer. Said Developer shall have the right to transact upon the condominium property any business necessary to consummate the sale of units, including, but not limited to the right to maintain models, have signs, staff employees, maintain offices, use the common elements, and show units. Any sales office, signs, fixtures or furnishings or other tangible personal property belonging to the Developer shall not be

considered common elements and shall remain the property of the Developer.

22.2 Notwithstanding anything in this Declaration to the contrary, during the period of time which the Developer guarantees the budget attached hereto as Projected Operating Budget for 1978, the units owned by the Developer shall not be subject to assessments as provided for in this Declaration of Condominium. The Developer may at its sole option, be assessed and pay to the Association in lieu of a budget guarantee thereof, the sums required to be paid by Developer as assessments pursuant to the Condominium Act. The actual operating expenditures, for this purpose, shall not include any reserves, or capital expenditures.

22.3 Notwithstanding anything herein to the contrary, the provisions of this section shall not be subject to any amendment until the Developer has sold all of the units in Barwood Condominium IV, a Condominium.

23. Termination. The condominium may be terminated in the following manner in addition to the manner provided in the Condominium Act:

23.1 Destruction. In the event that it is determined in the manner elsewhere provided that the unit buildings shall not be reconstructed because of major damage, the condominium plan of ownership will be thereby terminated without agreement.

23.2 Agreement. The condominium may be terminated by the approval in writing of all of the owners of the units therein and by all record owners of mortgages thereon. If the proposed termination is submitted to a meeting of the members of the Association, the notice of which meeting gives notice of the proposed termination, and if the approval of the owners of not less than seventy-five (75%) percent of the common elements, and of the record owners of all mortgages upon the units are obtained in writing not later than thirty (30) days from the date of such meeting, then the approving owners shall have an option to buy all of the units of the other owners for the period ending on the sixtieth (60th) day from the date of such meeting. Such approvals shall be irrevocable until the expiration of the option, and if the option is exercised, the approval shall be irrevocable. Such option shall be upon the following terms.

1. Exercise of option. The option shall be exercised by delivery or mailing by certified mail to each of the record owners of the units to be purchased, of an agreement to purchase signed by the record owners of units who will participate in the purchase. Such agreement shall indicate which units will be purchased by each participating owner and shall provide for the purchase

of all of the units owned by owners not approving the termination, and the effect of said agreement shall be to create a separate contract between each seller and his purchaser.

2. Price. The sale price for each unit shall be the fair market value determined by agreement between the seller and the purchaser within thirty (30) days from the delivery or mailing of such agreement, and in the absence of agreement as to price, it shall be determined by arbitration in accordance with the then existing rules of the American Arbitration Association, except that the arbitrators shall be two appraisers appointed by the American Arbitration Association who shall base their determination upon an average of their appraisals of the unit; and, a judgment of specific performance of the sale upon the award rendered by the arbitrators may be entered in any court of competent jurisdiction. The expense of the arbitration shall be paid by the purchaser.

3. Payment. The purchase price shall be paid in cash.

4. Closing. The sale shall be closed within thirty (30) days following the determination of the sale price.

23.3 Certificate. After the termination of the condominium, unit owners shall own the condominium property and all assets of the Association as tenants in common in undivided shares, and their respective mortgagees and lienors shall have mortgages and liens upon the respective undivided shares of the unit owners. Such undivided shares of the unit owners shall be the same as the undivided shares in the common elements appurtenant to the owners' unit prior to the termination.

23.5 Amendments. This section concerning termination cannot be amended without consent of all unit owners and all record owners of mortgages upon units.

24. Covenants. All provisions of the Declaration shall be construed to be covenants running with the land and with every part thereof and interest therein, and every unit owner and claimant of the land or any part thereof or interest therein, and his heirs, executors and administrators, successors and assigns, shall be bound by all of the provisions of the Declaration.

25. Severability and Invalidity.

25.1 The invalidity in whole or in part of any covenant or restrictions of any section, subsection, sentence, clause, phrase, word, or other provisions of the Declaration of Condominium, the Articles of Incorporation, By-Laws, Rules and Regulations of the Association shall not affect the validity of the remaining portions which shall remain in full force and effect.

25.2 In the event any court shall hereafter determine that

any provision of the Declaration of Condominium, as originally drafted, or as amended, violate the rule against perpetuities or any other rules of law because of the duration of the period involved, and period specified in the Declaration shall not thereby become invalid, but instead shall be reduced to the maximum period allowed under such rules of law, and for such purpose measuring lives shall be those of the incorporators of the Association.

26. Interpretation. The provisions of this Declaration shall be liberally construed to effectuate its purposes of creating a plan for the operation of a condominium in accordance with the laws made and provided for same: Chapter 718 of the Florida Statutes.

IN WITNESS WHEREOF, the Developer, BARWOOD DEVELOPMENT CORPORATION, has executed this Declaration of Condominium on this 24th day of March, 1978.

BARWOOD DEVELOPMENT CORPORATION

By George H. Sparling
George H. Sparling, President

Barbara M. Sparling
Barbara M. Sparling

ATTEST:

Barbara M. Sparling
Barbara M. Sparling, Secretary

(CORPORATE SEAL)

STATE OF FLORIDA
COUNTY OF PALM BEACH

On this day personally appeared before me, the undersigned authority, GEORGE H. SPARLING and BARBARA M. SPARLING, as President and Secretary, respectively, of Barwood Development Corporation, a Florida corporation, and they acknowledged before me that they executed the foregoing Declaration of Condominium as such officers of said corporation and that they affixed hereto the official seal of said corporation and that the foregoing instrument is the act and deed of said corporation.

Witness my hand and official seal at Boca Raton, said County and State last aforesaid, this 24th day of March, 1978.

Barbara M. Sparling
Notary Public, State of Florida

My Commission Expires:

NOTARY PUBLIC STATE OF FLORIDA AT LARGE
MY COMMISSION EXPIRES JULY 20 1981
BONDED WITH GENERAL S&S. UNDERWRITERS

EXHIBIT B
LEGAL DESCRIPTION

DECLARATION OF CONDOMINIUM
FOR
BARWOOD CONDOMINIUM IV, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

JOHN A. GRANT, JR., INC.
Consulting Engineers
3333 North Federal Highway
Boca Raton, Florida 33431

Sheet 1 of 4
JG 100-1948
June 23, 1977

BUILDING AREA 1-A-5
LEGAL DESCRIPTION

A parcel of land lying in Section 31, Township 47 South, Range 42 East, Palm Beach County, Florida, being a portion of Block "A", PLAT I of BARWOOD as recorded in Plat Book 31, Pages 24-25 of the Public Records of Palm Beach County, Florida, and a portion of PLAT II of BARWOOD as recorded in Plat Book 33, Pages 27-28 of the Public Records of Palm Beach County, Florida, said parcel being more particularly described as follows:

Commencing at the centerline intersection of Southwest 66th Avenue and Southwest 19th Street, as shown on the plat of Sandalfoot Cove, Section One, as recorded in Plat Book 28, Pages 225 and 226, Public Records of Palm Beach County, Florida; thence along the centerline of said Southwest 19th Street, N. $89^{\circ} 05' 05''$ E., a distance of 205.00 feet to a point at the beginning of a curve, from which the radius point bears S. $0^{\circ} 54' 55''$ E., 446.41 feet; thence easterly, along said curve, an arc distance of 271.33 feet to a point; thence along a radial line of said curve, N. $33^{\circ} 54' 32''$ E., a distance of 40.00 feet; thence S. $56^{\circ} 05' 28''$ E., a distance of 385.96 feet; thence N. $28^{\circ} 08' 29''$ E., a distance of 401.51 feet; thence N. $36^{\circ} 52' 12''$ E., a distance of 267.77 feet to a point at the beginning of a curve from which the radius point bears S. $53^{\circ} 07' 48''$ E., a distance of 100.00 feet; thence northeasterly along said curve, an arc distance of 164.05 feet to a point; thence S. $49^{\circ} 08' 05''$ E., a distance of 222.24 feet to a point of curvature; thence with a curve to the right having a radius of 900.00 feet, an arc length of 248.73 feet to the Point of Beginning of the herein described parcel of land; thence continuing along the aforementioned curve to the right having a radius of 900.00 feet, an arc length of 255.57 feet to a point; thence with a bearing of S. $17^{\circ} 01' 49''$ E. a distance of 50.00 feet to a point, being the easternmost corner of Plat I of Barwood; thence with a bearing of S. $72^{\circ} 58' 11''$ W., a distance of 88.65 feet to a point; thence with a bearing of S. $68^{\circ} 36' 00''$ W., a distance of 99.19 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 188.00 feet to a point; thence with a bearing of S. $68^{\circ} 36' 00''$ W., a distance of 22.25 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 75.55 feet to a point; thence with a curve to the left having a radius of 187.75 feet, an arc length of 45.53 feet to a point; thence with a bearing of N. $54^{\circ} 42' 17''$ E., a distance of 22.25 feet to a point; thence with a curve to the right having a tangent bearing of S. $35^{\circ} 17' 43''$ E., a radius of 210.00 feet, an arc length of 37.77 feet to a point;

BUILDING AREA 1-A-5 (Continued)

thence with a bearing of N. $65^{\circ} 00' 34''$ E., a distance of 110.59 feet to a point; thence with a bearing of N. $56^{\circ} 42' 00''$ E., a distance of 66.12 feet more or less to the Point of Beginning.

Containing 1.308 Acres, more or less and subject to easements and rights-of-way or record.

ALSO subject to an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point of compound curvature; thence with a curve to the left having a radius of 86.67 feet, an arc length of 67.20 feet to a point; thence with a bearing of N. $46^{\circ} 53' 58''$ E., a distance of 77.9 feet to a point; thence with a bearing of S. $43^{\circ} 06' 02''$ E., a distance of 77.5 feet to a point; thence with a curve to the right having a radius of 222.50 feet, an arc length of 70.33 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned curve to the right having a radius of 222.50 feet, an arc length of 13.94 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 18.85 feet to a point designated as Point "C"; thence continuing along the aforementioned course of S. $21^{\circ} 24' 00''$ E., a distance of 244.70 feet more or less to the end of the centerline of the subject easement.

ALSO Beginning at the aforementioned Point "C"; thence with a bearing of S. $68^{\circ} 36' 00''$ W., a distance of 34.75 feet more or less to the end of the centerline of the 25 foot wide subject easement.

ALSO subject to a Utility Easement as shown on Plat 1 of Barwood, as recorded in Plat Book 31, Pages 24 and 25, Public Records, Palm Beach County, Florida.

TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point of compound curvature; thence with a curve to the left having a radius of 86.67 feet, an arc length

BUILDING AREA 1-A-5 (Continued)

of 67.20 feet to a point; thence with a bearing of N. $46^{\circ} 53' 58''$ E., a distance of 25.00 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned course a distance of 52.9 feet to a point; thence with a bearing of S. $43^{\circ} 06' 02''$ E., a distance of 77.5 feet to a point; thence with a curve to the right having a radius of 222.50 feet, an arc length of 70.3 feet more or less to the end of the centerline of the subject easement.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat I of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 25.00 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of S. $72^{\circ} 03' 51''$ E., a distance of 21.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 86.42 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 119.70 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet more or less to the end of the centerline of the subject easement.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat I of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 46.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 16.92 feet to the Point of Beginning of the centerline of the subject easement; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 281.00 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 104.25 feet more or less to the end of the centerline of the subject easement.

BUILDING AREA 1-A-5 (Continued)

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North, as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 46.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 16.92 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 281.00 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 104.25 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 156.00 feet more or less to the end of the centerline of the subject easement.

EXHIBIT C
ARTICLES OF INCORPORATION
OF
BARWOOD CONDOMINIUM IV ASSOCIATION, INC.

TO
DECLARATION OF CONDOMINIUM
OF
BARWOOD CONDOMINIUM IV, A CONDOMINIUM
PALM BEACH COUNTY, FLOIRDA

State of Florida

DEPARTMENT OF STATE • DIVISION OF CORPORATIONS

I certify that the following is a true and correct copy of Articles of Incorporation of BARWOOD CONDOMINIUM IV ASSOCIATION, INC., a corporation not for profit organized under the Laws of the State of Florida, filed on March 21, 1978, as shown by the records of this office.

The charter number for this corporation is 742155.

GIVEN under my hand and the Great Seal of the State of Florida, at Tallahassee, the Capital, this the 22nd day of March, 1978.



[Signature]
SECRETARY OF STATE

ARTICLES OF INCORPORATION

OF

BARWOOD CONDOMINIUM IV ASSOCIATION, INC.

The undersigned hereby associate themselves for the purpose of forming a corporation not for profit under Chapter 608, Florida Statutes, and certify as follows:

FILED
MAR 28 2 05 PM '78
SECRETARY OF STATE
TALLAHASSEE, FLORIDA

ARTICLE I

The name of the corporation shall be:

BARWOOD CONDOMINIUM IV ASSOCIATION, INC.,

which corporation shall hereinafter be referred to as the "Association"

ARTICLE II

Purpose

The purposes and objects of the Association shall be to administer the operation and management of the condominium to be established in accordance with the Condominium Act of the State of Florida and pursuant to the development plans set forth in the Declaration of Condominium, upon or within the property in Palm Beach County, Florida, legally described upon Exhibit B attached to the Declaration of Condominium and made a part hereof which entire area is hereinafter referred to as "BARWOOD CONDOMINIUM IV A CONDOMINIUM"; and to undertake the performance of the acts and duties incident to the administration of the operation and management of said condominium in accordance with the terms, provisions, conditions and authorizations contained in these Articles of Incorporation and which may be contained in the formal Declaration of Condominium which shall be recorded in the Public Records of Palm Beach County, Florida, at the time that said property, and the improvements situate thereon are submitted to a plan of condominium ownership and to own, operate, lease, sell, trade and otherwise deal with such property, whether real or personal as may be necessary or convenient in the administration of said condominium; and further, to foster a fine residential community throughout the area of the development.

ARTICLE III

Powers

The Association shall have the following powers:

1. The Association shall have all of the common law and statutory powers of a corporation not for profit under the laws of Florida which are not in conflict with the terms of these articles.

2. The Association shall have all of the powers and duties set forth in the Florida Condominium Act except as limited by these Articles and any attendant declarations of condominium, and all of the powers and duties reasonably necessary to implement and effectuate the purposes of the Association, as hereinabove set forth, including but not limited to the following:

(a) To make, establish and enforce reasonable rules and regulations governing the use of condominium units, common elements and condominium property as said terms may be defined in the Declaration of Condominium to be recorded.

(b) To make and collect assessments against members of the Association to defray the costs, expenses and losses of the condominium and the Association.

(c) To use the proceeds of assessments in the exercise of its powers and duties.

(d) To undertake the maintenance, repair, replacement and operation of the condominium and the condominium properties or property leased by the Association for the benefit of its members.

(e) To purchase insurance upon the condominium properties and insurance for the protection of the Association and its members.

(f) To reconstruct the condominium improvements after casualty and construct further improvements of the condominium properties.

(g) To make reasonable rules and regulations respecting the use of the condominium properties.

(h) To approve or disapprove the leasing and transfer of ownership of apartments as may be provided by the Declaration of Condominium and the By-Laws.

(i) To enforce by legal means the provisions of the Condominium Act, the Declaration of Condominium, the Articles of Incorporation and the By-Laws of the Association, and the rules and regulations for the use of the properties in the condominium.

(j) To acquire and/or to sell and to enter into any agreements whereby it acquires and/or sells any interest in real or personal property, whether by fee or otherwise, whether or not contiguous to the land of the condominium, all to be for the use or benefit of the members of the Association.

3. All funds and the titles to all properties acquired by the Association and the proceeds thereof shall be held in the trust for the members in accordance with the provisions of the Declaration of Condominium, these Articles of Incorporation and the By-Laws.

4. The Association shall make no distribution of income to its members, directors or officers.

5. The powers of the Association shall be subject to and shall be exercised in accordance with the provisions of the Declaration of Condominium and the By-Laws.

ARTICLE IV

Members

1. The members of the Association shall consist of all the record owners of Units in the building of the condominium comprising BARWOOD CONDOMINIUM IV, A CONDOMINIUM.

2. Transfer of membership in the Association shall be established by the recording in the Public Records of Palm Beach County, Florida, of an Approval of Transfer executed by the BARWOOD CONDOMINIUM IV ASSOCIATION, INC., and of a condominium deed or other instrument establishing a record title to a Unit in the condominium and the delivery to the Association of the certified copy of such instrument; the owner or owners designated by such instrument thereby becoming a member or members of the Association. The membership in the Association of the prior owner or owners shall be thereby terminated.

3. The share of a member in the funds and assets of the Association cannot be assigned, hypothecated or transferred in any manner except as an appurtenance to his or her unit.

4. The members of the Association, singly or collectively, shall be entitled to only one vote for each unit owned by them. The exact manner of exercising voting rights when there are two or more owners of one unit shall be determined by the By-Laws of the Association.

ARTICLE V

Directors

1. The affairs of the Association will be managed by a Board consisting of the number of Directors as shall be determined by the By-Laws of the Association, but shall be not less than three (3) in number. In the absence of a determination as to the number of members, the Board of Directors shall consist of five (5) Directors.
2. The Directors of the Association shall be elected at the annual meeting of the members in the manner determined by the By-Laws. Directors may be removed and vacancies on the Board of Directors shall be filled in the manner provided by the By-Laws.
3. The first election of Directors by the members of the Association shall be held pursuant to the provisions of the Condominium Act (specifically Florida Statutes, Chapter 718.301), or when the Developer shall voluntarily call an election, whichever shall first occur.
4. The Directors herein named shall serve until the first election of Directors by Association members, and any vacancies in their number occurring before the first election shall be filled by remaining Directors.
5. The names and addresses of the members of the first Board of Directors, who shall hold office until their successors are elected and have qualified, or until removed, are as follows:

Name

George H. Sparling	9740 S.W. 18th Street Boca Raton, Florida 33432
John B. Sparling	55 S.W. 2nd Avenue Boca Raton, Florida 33432
Barbara M. Sparling	9740 S.W. 18th Street Boca Raton, Florida 33432

ARTICLE VI

Officers

The affairs of the Association shall initially be administered by the officers named in these Articles of Incorporation. After the Developer has relinquished control of the Board of Directors, the officers shall be elected by the Board of Directors at its first meeting, following the annual meeting of the members of the Association; which officers shall serve at the pleasure of the Board of Directors. The names and addresses of the officers

who shall serve until their successors are designated by the Board of Directors elected by the membership of the Association are as follows:

<u>NAME and ADDRESS</u>	<u>OFFICE</u>
George H. Sparling 9740 S.W. 18th Street Boca Raton, Florida 33432	President
Barbara M. Sparling 9740 S. W. 18th Street Boca Raton, Florida 33432	Secretary
John B. Sparling 55 S.W. 2nd Avenue Boca Raton, Florida 33432	Treasurer

ARTICLE VII

Indemnification

Every Director, and every officer of the Association shall be indemnified by the Association against all expenses and liabilities including counsel fees, reasonably incurred by, or imposed upon him in connection with any proceeding to which he may be a party, or in which he may become involved, by reason of his being or having been a Director or officer of the Association, whether or not he is a Director or officer at the time such expenses are incurred, except in such cases wherein the Director or officer is adjudged guilty of willful misfeasance or malfeasance in the performance of his duties, provided that in the event of a settlement, indemnification shall apply only when the Board of Directors approve such settlement and reimbursement as being for the best interest of the Association.

The foregoing right of indemnification shall be in addition to, and not exclusive of all other rights to which such Director or officer may be entitled.

ARTICLE VIII

By-Laws

The first By-Laws of the Association shall be adopted by the Board of Directors named herein, and may be altered, amended or rescinded in the manner provided by the By-Laws.

ARTICLE IX

Amendments to these Articles of Incorporation shall be proposed

and adopted in the following manner:

1. Notice of the subject matter of a proposed amendment shall be included in the notice of any meeting at which a proposed amendment is considered.

2. A resolution approving a proposed amendment may be proposed by either the Board of Directors or by any one or more members of the Association. Directors and members not present in person or by proxy at the meetings considering the amendment may express their approval in writing, providing such approval is delivered to the Secretary of the Association at or prior to the meeting.

(a) Such approval must be by not less than 75% of the entire membership of the Board of Directors and by not less than 75% of the votes of the entire membership of the Association; or

(b) By not less than 80% of the votes of the entire membership of the Association.

3. No amendment shall make any changes in the qualification for membership or in voting rights of members, or any change in Paragraphs 3 and/or 4 of Article III hereof without approval in writing by all members.

4. A copy of each amendment to the Articles of Incorporation as approved shall be accepted and certified by the Secretary of State and recorded in the public records of Palm Beach County, Florida.

ARTICLE X

Term

This Association shall have perpetual existence.

ARTICLE XI

Developer

Wherever referred to herein, the term "Developer" shall mean BARWOOD DEVELOPMENT CORPORATION, a Florida Corporation, its successors or assigns.

ARTICLE XII

Subscribers

The names and addresses of the subscribers of these Articles of Incorporation are as follows:

<u>Name</u>	<u>Address</u>
George H. Sparling	9740 S. W. 18th Street Boca Raton, Florida 33432
Barbara M. Sparling	9740 S. W. 18th Street Boca Raton, Florida 33432
John W. Neuman	9740 SW 18th Street Boca Raton, FL 33432

ARTICLE XIII

Registered Agent

The initial registered agent of the Association shall be GEORGE H. SPARLING, whose address is 23277 Barwood Lane North, Boca Raton, Florida 33432.

ARTICLE XIV

Registered Address

The initial street address of the Registered Office of this Corporation in the State of Florida is 23277 Barwood Lane North, Boca Raton, Florida, 33432.

ARTICLE XV

Agent of Service of Process

This corporation desiring to organize under the laws of the State of Florida with its principal office as indicated in these Articles of Incorporation at the City of Boca Raton, Palm Beach County, Florida, has named GEORGE H. SPARLING, 23277 Barwood Lane North, Boca Raton, Florida, as its agent of service of process within this State.

ACKNOWLEDGMENT:

Having been named to accept service of process for the above stated corporation, at place designated in this Article, I hereby accept to act in this capacity, and agree to comply with the provisions of said act relative to keeping open said office.

BY:

George H. Sparling
GEORGE H. SPARLING
Agent for Service of Process

IN WITNESS WHEREOF, the subscribers have hereunto affixed their signatures on this 3rd day of March, 1978.

George H. Sparling
GEORGE H. SPARLING

Barbara M. Sparling
BARBARA M. SPARLING

J. W. Neuman
JOHN W. NEUMAN

STATE OF FLORIDA
COUNTY OF PALM BEACH

Before me, the undersigned authority duly authorized to administer oaths and take acknowledgements in the State of Florida on this day personally appeared George H. Sparling, Barbara M. Sparling, and John W. Neuman, being all the subscribers of the Articles of Incorporation of the foregoing Association, who, after being duly sworn by me, upon their oaths, stated that they have executed the foregoing Articles of Incorporation for the purposes therein expressed.

WITNESS my hand and official seal at Boca Raton, in said County and State on this 3rd day of March, 1978.

Barbara J. Neuman
Notary Public, State of Florida

My Commission Expires:

NOTARY PUBLIC STATE OF FLORIDA AT LARGE
MY COMMISSION EXPIRES JULY 20 1981
BONDED THROUGH GENERAL INS. UNDERWRITERS